

Attorney review packet — The Free Website Co.

Prepared 2026-09-06 for a one-sitting review (target: 45–60 minutes of attorney time). Questions 16–21 concern the business name and were added after a research pass; if time is short, they are the ones worth the most.

What the business is, in four lines

- A one-person, Los Angeles-based web shop. It builds websites for small home-services businesses (HVAC, plumbing, electrical, roofing, landscaping) **at no charge**; the client owns the domain, code, and hosting from day one.
- Revenue comes only from optional month-to-month services: Hosted (\$29/mo), Care Plan (\$150/mo), Lead Capture System (\$297/mo), Reputation Engine (\$197/mo), and quoted one-off work. No contracts, cancel anytime, full handoff within 5 business days at no charge.
- Online payments for clients (when requested) run through the **client's own Stripe account** connected to a Stripe Connect platform operated by Long Hall Financial, the owner's holding company. Funds never touch The Free Website Co.
- Public site: <https://freewebsiteco.com> — terms at /terms/, privacy at /privacy/, services at /services/. The site is live; contact details are being set up.

Documents to review

1. **Free Website Build — One-Page Agreement** (attached below; signable twin of /terms/)
2. **Care Plan — One-Page Agreement** (attached below; signable twin of the plan terms on /services/ and /terms/)
3. **/terms/** — <https://freewebsiteco.com/terms/> (plain-English public version; must stay in sync with #1 and #2)
4. **/privacy/** — <https://freewebsiteco.com/privacy/>
5. **Intake forms** — <https://freewebsiteco.com/#start> (the SMS-consent checkbox wording and the data-handling sentence next to the form)

Questions, in priority order

Entity and name

1. The owner is deciding between a California single-member LLC and a sole proprietorship with a DBA. Which should be the signing party on these agreements, and does the answer change any

clause? (Owner's goal: the business must be separable and sellable later, and should not be tied to the owner's personal name or to Long Hall Financial.)

2. Is "The Free Website Co." acceptable as a California fictitious business name for an LLC or sole proprietor (the "Co." abbreviation, and the word "Free" in a business name)? Any LA County FBN filing wrinkles?
3. Both agreements and /terms/ currently describe Long Hall Financial as "The Free Website Co.'s parent company." The intended structure is a separate operating entity that merely **uses** Long Hall Financial's Stripe Connect platform under an arm's-length arrangement. What should the client-facing disclosure say instead, and is a short written intercompany / platform-services agreement between the two entities needed?

Both agreements

4. Please supply a governing-law (California), venue, and limitation-of-liability block sized for a free build and \$29–\$297/month services. A cap at fees paid in the prior 12 months (and \$0 → a nominal figure for free builds) is the owner's instinct; correct it if needed.
5. Unavailability clause (Free Build §8, Care Plan §5): reply clocks pause up to 10 business days for illness/emergency, then the client may cancel with everything delivered. Bless or tighten.
6. Ownership language: "You own it" and "the site's code remains yours." Does the free-build agreement need an explicit copyright assignment (code, copy, design) effective at launch, with a retained license for the owner's portfolio copy (§7)? What is the ownership position **before** launch or if the client walks away under §9?
7. Is a no-charge build agreement enforceable as drafted, or should it recite consideration (the client's intake work, the optional-services relationship, the portfolio license)?
8. Client warranty on photos, logos, and testimonials (Free Build §6): does it need an indemnity, and is the wording adequate for testimonial permission under FTC endorsement rules?

Care plan and payments

9. Monthly, cancel-anytime billing: what is needed to comply with California's Automatic Renewal Law (disclosure at sign-up, affirmative consent, an online cancellation path, the acknowledgment email)? The agreement promises pro-rata refunds and billing that "stops the day you cancel" — keep, change, or drop?
10. Stripe Connect (Standard accounts, client-owned): with funds never held by the owner's entity, any money-transmission or disclosure concerns in California? Is the platform-fee disclosure ("disclosed in writing before the payment page goes live, and shown on the page itself") sufficient?
11. Payment-failure handling for the care plans is not yet drafted; please propose two sentences.

Promises made on the site

12. "Bug fixes free for 60 days after launch" and "a bug we caused is never your bill" — does this create warranty exposure beyond the intent (defects in what was built, for 60 days), and should the

agreements add an as-is / no-other-warranty sentence after it?

13. The intake form's SMS-consent checkbox (unchecked by default; the business will text only with consent): is the wording adequate under the TCPA and California law for a small business doing 10DLC-registered texting?
14. /privacy/ was drafted to CalOPPA; the owner believes CCPA thresholds do not apply. Confirm, and flag anything missing for a site whose forms collect name, email, phone, and business details from Californians.

The name (added 2026-09-06, after a research pass)

15. "The Free Website Co." is composed entirely of ordinary words describing the service. Our reading of USPTO's own materials puts it at the descriptive-to-generic end of the spectrum, and every other US trademark we found in the "FREE WEBSITE ____" family is dead. Is this name registrable on the Principal Register at all? If only on the Supplemental Register, or only with a Section 2(f) showing years from now, please say so plainly — the owner would rather know now than pay to find out.
16. **THE FREE WEBSITE GUYS**, US serial **97059883**, is a live registered mark in **Class 042** owned by The Free Website Guys LLC, a US company running the same business model (free website builds monetized on follow-on paid work, trading since 2020). Does "The Free Website Co." create a likelihood of confusion with it? What is the realistic exposure — a demand letter, an opposition if we ever file, or nothing?
17. **freewebsitecompany.com** is a live US-facing site launched around May 2026 with a near-identical offer, trading visibly as "Chroma Marketing Company." Does its existence change anything for us in either direction?
18. **The domain has a prior identity.** freewebsiteco.com previously hosted a business trading as "The Free Website Company" (archived captures confirm the title "The Free Website Company | #1 Web design and development company" as late as August/October 2025; the prior operator appears to have been based in India). The registration lapsed and the owner re-registered it on 2026-09-06. Does inheriting a domain whose prior occupant used a near-identical name in the same industry create any residual risk — a claim by that party, or an argument that our use is not distinct?
19. **An Australian sole trader** (Callum Ray Gracie, ABN 70 955 241 477, Sunshine Coast QLD) holds an Australian *business name* registration for "THE FREE WEBSITE CO" from 1 Nov 2025 and operates freewebsiteco.com.au. We found no trademark registration for him in Australia or anywhere. We believe this is irrelevant to a US business because trademark rights are territorial — please confirm, and flag anything that would change it (for example if we later sell into Australia, or if the business is sold to an international buyer).
20. **Given all of the above, the plan is: keep the name, never file for it, never spend money defending it, and build the sellable asset elsewhere** — the domain, the Google Business Profile and reviews, the recurring contracts, the documented process, and a separate distinctive operating

brand for paid services. Is that sound, and is there anything about it that would trouble a buyer during diligence?

Insurance (30-second opinion)

21. The owner is quoting general liability and professional/E&O coverage. Do these agreements' promises (60-day bug window, 5-day handoff, response-time commitments) raise anything a standard tech E&O policy would exclude?

What the owner would like back

- Redlines on the two one-page agreements (Markdown or Word — either is fine).
 - The liability / governing-law block as paste-ready text.
 - One-line answers to the numbered questions; "fine as is" is a welcome answer.
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Attachment A — Free Website Build — One-Page Agreement

(Current draft; bracketed blanks are filled after the entity decision.)

Between: [LEGAL ENTITY / YOUR NAME], doing business as The Free Website Co. ("we") and _____ ("you"), for the business _____.

Date: _____

What we're agreeing to

1. **The build is free.** We design, write, and build a website for your business at no charge: up to five pages that earn their place (Home, Services, About, Contact, plus one), copy written from your intake answers, mobile-first layout, click-to-call, a contact form that reaches your inbox, quote forms / booking links / service-area maps where they help, basic on-page SEO, and a Google Business Profile connection. First working draft within five business days of your confirmed slot (we confirm within one business day of intake; if capacity is full you'll know at confirmation).
2. **One revision round is included.** A revision is a change of mind — structure, layout, what the site does. Further revision rounds, new pages after launch, and new content are quoted in writing before any work starts, and you can always say no.
3. **Bugs are ours, for 60 days.** If something we built doesn't work, that's a bug, not a revision. We fix bugs free for 60 days after launch, and a bug fix never uses your revision round.

4. **You own it.** The domain is registered in your own account from day one. At launch we transfer the site's code and hosting into accounts in your name — or host it for you on a care plan (from \$29/month, cancel anytime; if you cancel, we complete the full handoff within 5 business days at no charge). Your choice, changeable later.
5. **Hosting costs are real and yours.** The build is free; running any website costs hosting — roughly \$0–20/month if you run it yourself, or the Care Plan above if we handle hosting, updates, and support.
6. **Your content is yours to give.** You confirm you have the right to use the photos, logos, and any testimonials you provide. We only publish testimonials you have written permission to use.
7. **Our record of the work.** We keep an archived copy of the finished site and may show it in our portfolio. Initial here to opt out: _____
8. **If we're unavailable** (illness, emergency), written response clocks pause for up to 10 business days; beyond that you may cancel and receive everything delivered to date plus the handoff instructions in your owner's guide.
9. **Either of us can walk away before launch.** If we're not a fit, you keep whatever has been delivered to you and owe nothing.

Not included free (quoted plainly if you want them): online stores (products, checkout, payments), standalone web apps (booking systems, portals, internal tools), pages beyond five, ongoing edits and new content, photography and logo design, ongoing growth services, and payment processing (Stripe's fees plus a disclosed platform fee, per the care-plan agreement).

Signatures: The Free Website Co. _____ Date _____ · Client
_____ Date _____

Attachment B — Care Plan — One-Page Agreement

(Current draft; bracketed blanks are filled after the entity decision.)

Between: [LEGAL ENTITY / YOUR NAME], doing business as The Free Website Co. ("we") and
_____ ("you"), for the website at _____.

Start date: _____

Plan (check one), billed monthly, cancel anytime:

- ☐ **Hosted — \$29/month** — hosting, SSL, daily backups, uptime monitoring, security and software updates, email support (2-business-day replies). No edits included.
- ☐ **Care Plan — \$150/month** — everything in Hosted, plus 3 content edits/month (2-business-day turnaround), 1-business-day support replies, and a monthly report.

Add-ons (either plan, quoted in writing before work starts): extra edit \$25 (5-pack \$100) · new page \$150 · campaign/landing page \$250 · email deliverability setup \$100 one-time.

Payments (optional): if you ask us to set up online payments (invoice payments, deposits, checkout), they run through your own Stripe account, connected to a payments platform operated by Long Hall Financial (The Free Website Co.'s parent company). Stripe's processing fees pass through unchanged; the platform fee for your plan is disclosed in writing before the payment page goes live, and appears on the page itself. You can disconnect your Stripe account at any time and keep it.

What every plan covers

1. **Hosting** of your website on infrastructure we manage, with updates, backups, and monitoring — downtime noticed by us before you.
2. **Edit quantities as listed for your plan.** An edit is one request email covering up to three small changes to existing pages (hours, prices, photos, wording); new pages and redesign-scale changes are add-ons, quoted in writing first. Unused edits don't roll over.
3. **Support** from the person who built the site, at your plan's reply time.
4. **Bug coverage** applies to defects in what we built. If a third-party service changes underneath the site (form provider, embed, browser), diagnosis is free and any rebuild is quoted in writing first.
5. **If we're unavailable** (illness, emergency), reply clocks pause up to 10 business days; beyond that you may cancel with the standard full handoff.

What stays true the whole time

6. **You still own everything.** The domain stays in your registrar account. The site's code remains yours.
7. **Cancel anytime, no fee, no notice period.** On cancellation we complete the full handoff within **5 business days at no charge** — code, hosting, and every credential moved into accounts in your name, confirmed in writing.
8. **No lock-in by design.** Bug fixes for things we built stay covered per your build agreement; leaving the Care Plan never voids them.
9. **Billing stops the day you cancel;** any part-month already billed is refunded pro-rata.

Signatures: The Free Website Co. _____ Date _____ · Client
_____ Date _____